

SOLVED PRACTICE WORKBOOK

NCRWC and Working of the Constitution - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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NCRWC and Working of the Constitution - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which statement most accurately describes NCRWC status?

- A. It exercised constituent power.
- B. It was a statutory Law Commission.
- C. It was a temporary executive advisory commission created by a 2000 resolution.
- D. It was a constitutional body under Article 368.

Answer: C

Explanation: Legal status controls the force of every recommendation. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM2. Which statement most accurately describes review boundary?

- A. Its mandate reviewed working within parliamentary democracy and without disturbing basic structure.
- B. It bound Parliament.
- C. It excluded institutional practice.
- D. It could replace the Constitution.

Answer: A

Explanation: Review was maintenance-oriented, not a constituent rewrite. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM3. Which statement most accurately describes report timing?

- A. Justice M.N. Venkatachaliah chaired the Commission and the report was submitted in 2002.
- B. The report was submitted in 1950.
- C. It remains a pending court case.
- D. Sarkaria chaired it.

Answer: A

Explanation: Identity and year are foundational facts. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM4. Which statement most accurately describes recommendation status?

- A. A later similar law proves adoption.
- B. Each proposal remains non-binding unless separately enacted or judicially recognised.
- C. All 249 proposals became law.
- D. None can ever influence reform.

Answer: B

Explanation: Implementation requires instrument-specific comparison. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM5. Which statement most accurately describes working concept?

- A. It means amendments alone.
- B. It excludes political practice.
- C. It is identical to judicial review.
- D. Constitutional working includes text, institutions, conventions, parties, administration and remedies.

Answer: D

Explanation: Performance may fail without textual collapse. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM6. Which statement most accurately describes implementation audit?

- A. Chronology proves causation.
- B. Exact adoption, modified adoption and functional similarity are different findings.
- C. Global implementation claims are sufficient.
- D. A common subject proves adoption.

Answer: B

Explanation: Recommendation-by-recommendation audit prevents overclaim. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM7. Which statement most accurately describes ministry ceiling?

- A. The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling.
- B. Both used 10%.
- C. There is no ministry ceiling.
- D. The NCRWC enacted the ceiling.

Answer: A

Explanation: Related reform is not exact implementation. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM8. Which statement most accurately describes judicial commission?

- A. The 2015 decision approved NJAC.
- B. The NCRWC proposal, later NJAC scheme and current collegium are distinct.
- C. NCRWC created NJAC.
- D. They are the same institution.

Answer: B

Explanation: Source, design and legal status differ. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM9. Which statement most accurately describes federal reform?

- A. They amended Articles 155-156.
- B. They repealed Article 356.
- C. Governor, Article 356 and Inter-State Council proposals were recommendations, not current text.
- D. They bind every Governor.

Answer: C

Explanation: Use current Articles and cases for operative law. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM10. Which statement most accurately describes constitutional morality?

- A. It replaces constitutional text.
- B. It is personal judicial ethics only.
- C. It means fidelity to constitutional forms, equality and institutional role limits.
- D. It means majority morality.

Answer: C

Explanation: The doctrine must be textually and structurally anchored. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM11. Which statement most accurately describes reform ladder?

- A. Commission advice itself changes law.
- B. Executive action can amend Part III.
- C. Every problem needs amendment.
- D. Practice, executive action, legislation and amendment are distinct reform routes.

Answer: D

Explanation: Choose the least legally sufficient route. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM12. Which statement most accurately describes answer method?

- A. Ignore basic structure.
- B. Cluster recommendations, state status, compare later law and give a qualified verdict.
- C. List proposals without status.
- D. Call every later reform implementation.

Answer: B

Explanation: This converts a report into an analytical answer. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM13. Which is the safest UPSC distinction concerning NCRWC status?

- A. It was a constitutional body under Article 368.
- B. It exercised constituent power.
- C. It was a statutory Law Commission.
- D. It was a temporary executive advisory commission created by a 2000 resolution.

Answer: D

Explanation: Legal status controls the force of every recommendation. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM14. Which is the safest UPSC distinction concerning review boundary?

- A. It could replace the Constitution.
- B. Its mandate reviewed working within parliamentary democracy and without disturbing basic structure.
- C. It excluded institutional practice.
- D. It bound Parliament.

Answer: B

Explanation: Review was maintenance-oriented, not a constituent rewrite. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM15. Which is the safest UPSC distinction concerning report timing?

- A. The report was submitted in 1950.
- B. Sarkaria chaired it.
- C. Justice M.N. Venkatachaliah chaired the Commission and the report was submitted in 2002.
- D. It remains a pending court case.

Answer: C

Explanation: Identity and year are foundational facts. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM16. Which is the safest UPSC distinction concerning recommendation status?

- A. Each proposal remains non-binding unless separately enacted or judicially recognised.
- B. A later similar law proves adoption.
- C. All 249 proposals became law.

- D. None can ever influence reform.

Answer: A

Explanation: Implementation requires instrument-specific comparison. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM17. Which is the safest UPSC distinction concerning working concept?

- A. Constitutional working includes text, institutions, conventions, parties, administration and remedies.
- B. It excludes political practice.
- C. It means amendments alone.
- D. It is identical to judicial review.

Answer: A

Explanation: Performance may fail without textual collapse. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM18. Which is the safest UPSC distinction concerning implementation audit?

- A. Chronology proves causation.
- B. A common subject proves adoption.
- C. Exact adoption, modified adoption and functional similarity are different findings.
- D. Global implementation claims are sufficient.

Answer: C

Explanation: Recommendation-by-recommendation audit prevents overclaim. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM19. Which is the safest UPSC distinction concerning ministry ceiling?

- A. The NCRWC enacted the ceiling.
- B. There is no ministry ceiling.
- C. Both used 10%.
- D. The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling.

Answer: D

Explanation: Related reform is not exact implementation. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM20. Which is the safest UPSC distinction concerning judicial commission?

- A. NCRWC created NJAC.
- B. The 2015 decision approved NJAC.
- C. The NCRWC proposal, later NJAC scheme and current collegium are distinct.
- D. They are the same institution.

Answer: C

Explanation: Source, design and legal status differ. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM21. Which is the safest UPSC distinction concerning federal reform?

- A. They bind every Governor.
- B. They repealed Article 356.
- C. Governor, Article 356 and Inter-State Council proposals were recommendations, not current text.
- D. They amended Articles 155-156.

Answer: C

Explanation: Use current Articles and cases for operative law. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM22. Which is the safest UPSC distinction concerning constitutional morality?

- A. It means fidelity to constitutional forms, equality and institutional role limits.
- B. It means majority morality.
- C. It replaces constitutional text.
- D. It is personal judicial ethics only.

Answer: A

Explanation: The doctrine must be textually and structurally anchored. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM23. Which is the safest UPSC distinction concerning reform ladder?

- A. Practice, executive action, legislation and amendment are distinct reform routes.
- B. Executive action can amend Part III.
- C. Every problem needs amendment.
- D. Commission advice itself changes law.

Answer: A

Explanation: Choose the least legally sufficient route. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM24. Which is the safest UPSC distinction concerning answer method?

- A. Ignore basic structure.
- B. Cluster recommendations, state status, compare later law and give a qualified verdict.
- C. List proposals without status.
- D. Call every later reform implementation.

Answer: B

Explanation: This converts a report into an analytical answer. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM25. A candidate makes a close-option error about NCRWC status. Which correction is most accurate?

- A. It exercised constituent power.
- B. It was a statutory Law Commission.
- C. It was a temporary executive advisory commission created by a 2000 resolution.
- D. It was a constitutional body under Article 368.

Answer: C

Explanation: Legal status controls the force of every recommendation. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM26. A candidate makes a close-option error about review boundary. Which correction is most accurate?

- A. Its mandate reviewed working within parliamentary democracy and without disturbing basic structure.
- B. It excluded institutional practice.
- C. It could replace the Constitution.
- D. It bound Parliament.

Answer: A

Explanation: Review was maintenance-oriented, not a constituent rewrite. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM27. A candidate makes a close-option error about report timing. Which correction is most accurate?

- A. The report was submitted in 1950.
- B. Sarkaria chaired it.
- C. Justice M.N. Venkatachaliah chaired the Commission and the report was submitted in 2002.

- D. It remains a pending court case.

Answer: C

Explanation: Identity and year are foundational facts. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM28. A candidate makes a close-option error about recommendation status. Which correction is most accurate?

- A. All 249 proposals became law.
- B. None can ever influence reform.
- C. A later similar law proves adoption.
- D. Each proposal remains non-binding unless separately enacted or judicially recognised.

Answer: D

Explanation: Implementation requires instrument-specific comparison. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM29. A candidate makes a close-option error about working concept. Which correction is most accurate?

- A. It is identical to judicial review.
- B. Constitutional working includes text, institutions, conventions, parties, administration and remedies.
- C. It excludes political practice.
- D. It means amendments alone.

Answer: B

Explanation: Performance may fail without textual collapse. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM30. A candidate makes a close-option error about implementation audit. Which correction is most accurate?

- A. A common subject proves adoption.
- B. Exact adoption, modified adoption and functional similarity are different findings.
- C. Global implementation claims are sufficient.
- D. Chronology proves causation.

Answer: B

Explanation: Recommendation-by-recommendation audit prevents overclaim. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM31. A candidate makes a close-option error about ministry ceiling. Which correction is most accurate?

- A. The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling.
- B. Both used 10%.
- C. The NCRWC enacted the ceiling.
- D. There is no ministry ceiling.

Answer: A

Explanation: Related reform is not exact implementation. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM32. A candidate makes a close-option error about judicial commission. Which correction is most accurate?

- A. The 2015 decision approved NJAC.
- B. They are the same institution.
- C. NCRWC created NJAC.
- D. The NCRWC proposal, later NJAC scheme and current collegium are distinct.

Answer: D

Explanation: Source, design and legal status differ. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM33. A candidate makes a close-option error about federal reform. Which correction is most accurate?

- A. They amended Articles 155-156.
- B. They repealed Article 356.
- C. Governor, Article 356 and Inter-State Council proposals were recommendations, not current text.
- D. They bind every Governor.

Answer: C

Explanation: Use current Articles and cases for operative law. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM34. A candidate makes a close-option error about constitutional morality. Which correction is most accurate?

- A. It means majority morality.
- B. It replaces constitutional text.
- C. It means fidelity to constitutional forms, equality and institutional role limits.
- D. It is personal judicial ethics only.

Answer: C

Explanation: The doctrine must be textually and structurally anchored. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM35. A candidate makes a close-option error about reform ladder. Which correction is most accurate?

- A. Commission advice itself changes law.
- B. Practice, executive action, legislation and amendment are distinct reform routes.
- C. Executive action can amend Part III.
- D. Every problem needs amendment.

Answer: B

Explanation: Choose the least legally sufficient route. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM36. A candidate makes a close-option error about answer method. Which correction is most accurate?

- A. Ignore basic structure.
- B. List proposals without status.
- C. Call every later reform implementation.
- D. Cluster recommendations, state status, compare later law and give a qualified verdict.

Answer: D

Explanation: This converts a report into an analytical answer. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

Remedial MCQs 1-12 - Common Error Repair

RM1. Which statement best repairs a recurring error about NCRWC status?

- A. It was a temporary executive advisory commission created by a 2000 resolution.
- B. It exercised constituent power.
- C. It was a statutory Law Commission.
- D. It was a constitutional body under Article 368.

Answer: A

Remedial explanation: Legal status controls the force of every recommendation. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM2. Which statement best repairs a recurring error about review boundary?

- A. It could replace the Constitution.
- B. It bound Parliament.
- C. It excluded institutional practice.
- D. Its mandate reviewed working within parliamentary democracy and without disturbing basic structure.

Answer: D

Remedial explanation: Review was maintenance-oriented, not a constituent rewrite. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM3. Which statement best repairs a recurring error about report timing?

- A. It remains a pending court case.
- B. The report was submitted in 1950.
- C. Sarkaria chaired it.
- D. Justice M.N. Venkatachaliah chaired the Commission and the report was submitted in 2002.

Answer: D

Remedial explanation: Identity and year are foundational facts. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM4. Which statement best repairs a recurring error about recommendation status?

- A. Each proposal remains non-binding unless separately enacted or judicially recognised.
- B. All 249 proposals became law.
- C. A later similar law proves adoption.
- D. None can ever influence reform.

Answer: A

Remedial explanation: Implementation requires instrument-specific comparison. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM5. Which statement best repairs a recurring error about working concept?

- A. It means amendments alone.
- B. It excludes political practice.
- C. It is identical to judicial review.
- D. Constitutional working includes text, institutions, conventions, parties, administration and remedies.

Answer: D

Remedial explanation: Performance may fail without textual collapse. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM6. Which statement best repairs a recurring error about implementation audit?

- A. A common subject proves adoption.
- B. Exact adoption, modified adoption and functional similarity are different findings.
- C. Global implementation claims are sufficient.
- D. Chronology proves causation.

Answer: B

Remedial explanation: Recommendation-by-recommendation audit prevents overclaim. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM7. Which statement best repairs a recurring error about ministry ceiling?

- A. Both used 10%.

- B. The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling.
- C. The NCRWC enacted the ceiling.
- D. There is no ministry ceiling.

Answer: B

Remedial explanation: Related reform is not exact implementation. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM8. Which statement best repairs a recurring error about judicial commission?

- A. The 2015 decision approved NJAC.
- B. NCRWC created NJAC.
- C. They are the same institution.
- D. The NCRWC proposal, later NJAC scheme and current collegium are distinct.

Answer: D

Remedial explanation: Source, design and legal status differ. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM9. Which statement best repairs a recurring error about federal reform?

- A. They repealed Article 356.
- B. They amended Articles 155-156.
- C. They bind every Governor.
- D. Governor, Article 356 and Inter-State Council proposals were recommendations, not current text.

Answer: D

Remedial explanation: Use current Articles and cases for operative law. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM10. Which statement best repairs a recurring error about constitutional morality?

- A. It means majority morality.
- B. It replaces constitutional text.
- C. It means fidelity to constitutional forms, equality and institutional role limits.
- D. It is personal judicial ethics only.

Answer: C

Remedial explanation: The doctrine must be textually and structurally anchored. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM11. Which statement best repairs a recurring error about reform ladder?

- A. Executive action can amend Part III.
- B. Practice, executive action, legislation and amendment are distinct reform routes.
- C. Commission advice itself changes law.
- D. Every problem needs amendment.

Answer: B

Remedial explanation: Choose the least legally sufficient route. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM12. Which statement best repairs a recurring error about answer method?

- A. Cluster recommendations, state status, compare later law and give a qualified verdict.
- B. Ignore basic structure.
- C. Call every later reform implementation.
- D. List proposals without status.

Answer: A

Remedial explanation: This converts a report into an analytical answer. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

PYQS AND ANSWER PRACTICE

Verified and Supporting PYQs with Model Solutions

Supporting routed PYQ 1 - 2021 GS-II Q1

Question: Explain the doctrine of constitutional morality with illustrations.

Directive: Explain with illustrations · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Explain the doctrine of constitutional morality with illustrations. The answer must respond to the directive **Explain with illustrations** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Define constitutional morality as fidelity to constitutional forms, equal citizenship and role limits.
- **Claim -> evidence -> analysis -> qualification:** Connect text with institutions, conventions and public justification.
- **Claim -> evidence -> analysis -> qualification:** Use Navtej Singh Johar (2018) only as a bounded rights illustration.
- **Claim -> evidence -> analysis -> qualification:** Distinguish constitutional morality from social or personal morality.
- **Claim -> evidence -> analysis -> qualification:** Conclude that constitutional working depends on conduct as well as text.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Supporting routed PYQ 2 - 2024 GS-II Q1

Question: Examine electoral reforms with reference to the debate on simultaneous elections.

Directive: Examine · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Examine electoral reforms with reference to the debate on simultaneous elections. The answer must respond to the directive **Examine** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Locate electoral reform within stability, accountability and federal choice.
- **Claim -> evidence -> analysis -> qualification:** Use NCRWC party, ECI and constructive-confidence proposals as recommendations.
- **Claim -> evidence -> analysis -> qualification:** Separate later proposals from enacted constitutional law.
- **Claim -> evidence -> analysis -> qualification:** Assess representation, campaign finance, legislatures and federal schedules.
- **Claim -> evidence -> analysis -> qualification:** Prefer proposal-specific constitutional and implementation scrutiny.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Supporting routed PYQ 3 - 2025 GS-II Q11

Question: Explain constitutional morality in relation to judicial independence and accountability.

Directive: Explain · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: Explain constitutional morality in relation to judicial independence and accountability. The answer must respond to the directive **Explain** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Independence protects adjudication from improper influence.
- **Claim -> evidence -> analysis -> qualification:** Accountability requires reasons, ethics, complaints and constitutional process.
- **Claim -> evidence -> analysis -> qualification:** NCRWC judicial proposals are historical recommendations, not current design.
- **Claim -> evidence -> analysis -> qualification:** Basic structure protects judicial review without eliminating accountability.
- **Claim -> evidence -> analysis -> qualification:** Institutional legitimacy requires both autonomy and transparent restraint.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Supporting routed PYQ 4 - 2019 GS-II Q12

Question: Explain whether Parliament's Article 368 power can destroy the basic structure.

Directive: Explain · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: Explain whether Parliament's Article 368 power can destroy the basic structure. The answer must respond to the directive **Explain** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Article 368 provides broad but limited constituent power.
- **Claim -> evidence -> analysis -> qualification:** Kesavananda Bharati (1973) is the controlling boundary.
- **Claim -> evidence -> analysis -> qualification:** NCRWC expressly worked without disturbing basic structure.
- **Claim -> evidence -> analysis -> qualification:** A commission report cannot amend or authorise unconstitutional amendment.
- **Claim -> evidence -> analysis -> qualification:** Reform must choose the proper legal route and survive structural review.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Original Solved Mains Practice

M1. Explain the constitutional status and mandate of the NCRWC.

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Explain the constitutional status and mandate of the NCRWC. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Review Boundary - claim -> evidence -> analysis -> qualification:** Its mandate reviewed working within parliamentary democracy and without disturbing basic structure. Review was maintenance-oriented, not a constituent rewrite.
- **Report Timing - claim -> evidence -> analysis -> qualification:** Justice M.N. Venkatachaliah chaired the Commission and the report was submitted in 2002. Identity and year are foundational facts.
- **Recommendation Status - claim -> evidence -> analysis -> qualification:** Each proposal remains non-binding unless separately enacted or judicially recognised. Implementation requires instrument-specific comparison.
- **Working Concept - claim -> evidence -> analysis -> qualification:** Constitutional working includes text, institutions, conventions, parties, administration and remedies. Performance may fail without textual collapse.
- **Implementation Audit - claim -> evidence -> analysis -> qualification:** Exact adoption, modified adoption and functional similarity are different findings. Recommendation-by-recommendation audit prevents overclaim.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M2. Distinguish review of constitutional working from constitutional rewriting.

Directive: Distinguish · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Distinguish review of constitutional working from constitutional rewriting. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Report Timing - claim -> evidence -> analysis -> qualification:** Justice M.N. Venkatachaliah chaired the Commission and the report was submitted in 2002. Identity and year are foundational facts.
- **Recommendation Status - claim -> evidence -> analysis -> qualification:** Each proposal remains non-binding unless separately enacted or judicially recognised. Implementation requires instrument-specific comparison.
- **Working Concept - claim -> evidence -> analysis -> qualification:** Constitutional working includes text, institutions, conventions, parties, administration and remedies. Performance may fail without textual collapse.
- **Implementation Audit - claim -> evidence -> analysis -> qualification:** Exact adoption, modified adoption and functional similarity are different findings. Recommendation-by-recommendation audit prevents overclaim.
- **Ministry Ceiling - claim -> evidence -> analysis -> qualification:** The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling. Related reform is not exact implementation.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M3. Examine the NCRWC recommendations on elections, parties and legislative functioning.

Directive: Examine · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Examine the NCRWC recommendations on elections, parties and legislative functioning. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Recommendation Status - claim -> evidence -> analysis -> qualification:** Each proposal remains non-binding unless separately enacted or judicially recognised. Implementation requires instrument-specific comparison.
- **Working Concept - claim -> evidence -> analysis -> qualification:** Constitutional working includes text, institutions, conventions, parties, administration and remedies. Performance may fail without textual collapse.
- **Implementation Audit - claim -> evidence -> analysis -> qualification:** Exact adoption, modified adoption and functional similarity are different findings. Recommendation-by-recommendation audit prevents overclaim.
- **Ministry Ceiling - claim -> evidence -> analysis -> qualification:** The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling. Related reform is not exact implementation.
- **Judicial Commission - claim -> evidence -> analysis -> qualification:** The NCRWC proposal, later NJAC scheme and current collegium are distinct. Source, design and legal status differ.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M4. Assess the NCRWC's federalism and decentralisation reform agenda.

Directive: Assess · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Assess the NCRWC's federalism and decentralisation reform agenda. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Working Concept - claim -> evidence -> analysis -> qualification:** Constitutional working includes text, institutions, conventions, parties, administration and remedies. Performance may fail without textual collapse.
- **Implementation Audit - claim -> evidence -> analysis -> qualification:** Exact adoption, modified adoption and functional similarity are different findings. Recommendation-by-recommendation audit prevents overclaim.
- **Ministry Ceiling - claim -> evidence -> analysis -> qualification:** The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling. Related reform is not exact implementation.
- **Judicial Commission - claim -> evidence -> analysis -> qualification:** The NCRWC proposal, later NJAC scheme and current collegium are distinct. Source, design and legal status differ.
- **Federal Reform - claim -> evidence -> analysis -> qualification:** Governor, Article 356 and Inter-State Council proposals were recommendations, not current text. Use current Articles and cases for operative law.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M5. Analyse why implementation must be audited recommendation by recommendation.

Directive: Analyse · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Analyse why implementation must be audited recommendation by recommendation. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Implementation Audit - claim -> evidence -> analysis -> qualification:** Exact adoption, modified adoption and functional similarity are different findings. Recommendation-by-recommendation audit prevents overclaim.
- **Ministry Ceiling - claim -> evidence -> analysis -> qualification:** The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling. Related reform is not exact implementation.
- **Judicial Commission - claim -> evidence -> analysis -> qualification:** The NCRWC proposal, later NJAC scheme and current collegium are distinct. Source, design and legal status differ.
- **Federal Reform - claim -> evidence -> analysis -> qualification:** Governor, Article 356 and Inter-State Council proposals were recommendations, not current text. Use current Articles and cases for operative law.
- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** It means fidelity to constitutional forms, equality and institutional role limits. The doctrine must be textually and structurally anchored.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M6. The Constitution may fail in practice without failing in text. Discuss.

Directive: Discuss · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: The Constitution may fail in practice without failing in text. Discuss. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Ministry Ceiling - claim -> evidence -> analysis -> qualification:** The NCRWC proposed 10%; the 91st Amendment adopted a different 15% ceiling. Related reform is not exact implementation.

- **Judicial Commission - claim -> evidence -> analysis -> qualification:** The NCRWC proposal, later NJAC scheme and current collegium are distinct. Source, design and legal status differ.
- **Federal Reform - claim -> evidence -> analysis -> qualification:** Governor, Article 356 and Inter-State Council proposals were recommendations, not current text. Use current Articles and cases for operative law.
- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** It means fidelity to constitutional forms, equality and institutional role limits. The doctrine must be textually and structurally anchored.
- **Reform Ladder - claim -> evidence -> analysis -> qualification:** Practice, executive action, legislation and amendment are distinct reform routes. Choose the least legally sufficient route.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M7. Evaluate the NCRWC as a model of constitutional maintenance rather than replacement.

Directive: Evaluate · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Evaluate the NCRWC as a model of constitutional maintenance rather than replacement. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Judicial Commission - claim -> evidence -> analysis -> qualification:** The NCRWC proposal, later NJAC scheme and current collegium are distinct. Source, design and legal status differ.
- **Federal Reform - claim -> evidence -> analysis -> qualification:** Governor, Article 356 and Inter-State Council proposals were recommendations, not current text. Use current Articles and cases for operative law.
- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** It means fidelity to constitutional forms, equality and institutional role limits. The doctrine must be textually and structurally anchored.
- **Reform Ladder - claim -> evidence -> analysis -> qualification:** Practice, executive action, legislation and amendment are distinct reform routes. Choose the least legally sufficient route.
- **Answer Method - claim -> evidence -> analysis -> qualification:** Cluster recommendations, state status, compare later law and give a qualified verdict. This converts a report into an analytical answer.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M8. Design a calibrated reform method for improving the working of the Constitution.

Directive: Design · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Design a calibrated reform method for improving the working of the Constitution. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Federal Reform - claim -> evidence -> analysis -> qualification:** Governor, Article 356 and Inter-State Council proposals were recommendations, not current text. Use current Articles and cases for operative law.
- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** It means fidelity to constitutional forms, equality and institutional role limits. The doctrine must be textually and structurally anchored.
- **Reform Ladder - claim -> evidence -> analysis -> qualification:** Practice, executive action, legislation and amendment are distinct reform routes. Choose the least legally sufficient route.
- **Answer Method - claim -> evidence -> analysis -> qualification:** Cluster recommendations, state status, compare later law and give a qualified verdict. This converts a report into an analytical answer.

- **Ncrwc Status - claim -> evidence -> analysis -> qualification:** It was a temporary executive advisory commission created by a 2000 resolution. Legal status controls the force of every recommendation.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.